Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 6 2013

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 5 April 2013

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 6 2013*.

Commencement

2. This Direction commences on the day after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Direction ceases as if it was revoked on 1 December 2018 unless earlier revoked.

Interpretation

4. Terms used in this Direction that are defined for the purposes of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

Notes: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

To whom this Direction applies

5. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Direction not to engage in fishing

6. Fishing by trawl methods is not to be engaged in in the area of the Southern and Eastern Scalefish and Shark Fishery as specified in Schedule 1 in a season if an aggregated amount of 25 tonnes of Orange Roughy (western) (*Hoplostethus atlanticus*) as defined in Schedule 2 of the Plan has been taken for the fishing season beginning on 1 May and ending on 30 April of the following year.

Revocation of previous Direction

7. This Direction revokes the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 2 2013* with effect from the commencement of this Direction.

SCHEDULE 1

The part of the Australian Fishing Zone contained within and bounded by a line:

commencing at the intersection of the parallel of latitude 39º 58’ 22.7” South and the meridian of longitude 143º 10’ 43.30” East;

then generally along the geodesics sequentially connecting the following points:

2	40° 01’ 38.00” South	143° 00’ 54.40” East
3	40° 54’ 00.00” South	143° 30’ 00.00” East
4	40° 54’ 00.00” South	143° 42’ 04.00” East
5	40° 47’ 26.00” South	143° 35’ 55.00” East
6	40° 43’ 00.00” South	143° 31’ 23.00” East
7	40° 35’ 42.00” South	143° 26’ 40.00” East
8	40° 26’ 33.00” South	143° 21’ 15.00” East
9	40° 04’ 05.00” South	143° 13’ 01.00” East
10	39° 58’ 24.00” South	143° 10’ 44.00” East

then generally north along the geodesic to the point of commencement.